Republic of the Philippines
Supreme Court
Manila

# 2026 BAR EXAMINATIONS

## CIVIL LAW AND LAND TITLES AND DEEDS

**September 9, 2026**

**8:00 a.m. – 12:00 noon**

1. Spouses Kit and Rex Cruz (spouses Cruz) were married on July 10, 1965. During their marriage, they acquired a 4-hectare farm in Tarlac. On June 19, 1992, Rex waived his right over the said property in favor of his illegitimate daughter, Mercy. On July 18, 2003, Mercy sold the property to Nelson through a Deed of Absolute Sale for PHP 2 million. Spouses Cruz confronted Nelson and explained that Mercy cannot validly sell the property. However, Nelson invoked the legitimacy of his contract with Mercy. Aggrieved, spouses Cruz filed a Complaint for Annulment of Deed of Absolute Sale with Damages against Mercy and Nelson before the Regional Trial Court of Tarlac. **Is the sale by Mercy to Nelson valid? Explain.**

2. In 1972, Victor married Marian in Quezon City. Later, Marian obtained a divorce decree in Nevada, USA. In 1989, Victor, believing he was divorced from Marian, married Stela in New Jersey, USA. However, Victor and Stela eventually separated.

Thereafter, Victor filed a Petition for Declaration of Nullity of his marriage with Stela before the Regional Trial Court of Bacoor, Cavite on the ground of bigamy. Victor claimed that after he married Stela, he found out that Marian was still a Filipino citizen when she obtained the divorce decree, and as such, his marriage to her was still valid and subsisting at the time of his second marriage.

In her Answer, Stela argued that her marriage with Victor is valid under Article 26 of the Family Code and not bigamous, because she was an American citizen at the time of her marriage with Victor. She also claimed that Victor was guilty of bad faith because when he proposed to her, he assured her that he was single. He even brought his parents to their house where he and his parents made the same assurance that he was single. Thus, Stela prayed for an award of moral and exemplary damages. **Is Stela entitled to damages? Explain.**

3. Julia filed a Petition for Declaration of Nullity of her marriage with Gerald, invoking the latter's psychological incapacity. In her Petition, Julia alleges that prior to their marriage, she and Gerald begot a child named Kimmy. They got married shortly after Kimmy's birth. Julia further argues that Gerald physically, emotionally, and verbally abused her and Kimmy, was an alcoholic, pathological gambler, and a womanizer. Due to the ongoing spat, Gerald took Kimmy away from Julia.

After trial, the Regional Trial Court (RTC) granted the Petition, ruling that the marriage of the parties is null and void, and declaring Kimmy as the illegitimate child of Julia and Gerald. Dissatisfied with the RTC Decision, the Office of the Solicitor General (OSG) filed a Motion for Partial Reconsideration to assail that part of the ruling declaring Kimmy illegitimate. In response, Julia filed a Comment claiming that Kimmy is an illegitimate child because she was born before the parties' marriage. Julia adds that since Kimmy is an illegitimate child, she should have sole custody over the latter. **Is Julia correct? Explain.**

4. Hiraya, a Filipino citizen, and Katsuki, a Japanese national, contracted marriage in Mandaluyong City. They begot a child named Yua. Soon after their marriage, the spouses moved to Japan. Unfortunately, their relationship turned sour and they secured a "divorce decree by mutual agreement" in Japan, as evidenced by the Divorce Certificate issued by the Embassy of Japan in the Philippines. The fact of divorce was duly recorded in the Civil Registry of Japan, as exhibited by the original copy of the Family Registry of Japan bearing the official stamp of the Mayor of Nakano-Ku, Tokyo, Japan, and supported by its corresponding English translation.

Upon returning to the Philippines, Hiraya filed a petition for judicial recognition of foreign divorce and declaration of capacity to remarry before the Regional Trial Court (RTC). The Republic opposed the petition, postulating that the RTC cannot recognize a foreign divorce that was obtained by mere mutual agreement between the spouses as it is tantamount to collusion. **Is the Republic correct? Explain.**

5. Kumar, an Indian national, wanted to purchase a condominium unit and a parking slot at Quattro Condominium, Makati, allegedly owned by Gun Hoo, a Korean national married to Ro Hee. Gun Hoo offered the unit for PHP 4.8 million. Kumar issued Gun Hoo a check for PHP 300,000.00 as reservation fee, and another check for PHP 4.5 million as balance for the purchase price. Kumar and Gun Hoo then executed a Deed of Absolute Sale covering the unit and parking slot. However, despite several verbal demands, Gun Hoo failed to deliver the titles. Later, Kumar learned that Gun Hoo left the country.

After verification, Kumar found out that the titles have no existing encumbrances but are in the possession of the Rural Bank of San Jacinto (Rural Bank) due to a previous mortgage that was not annotated on the titles. However, the Rural Bank refused to surrender the titles alleging that the sale is void under Korean law, which mandates that any conveyance of conjugal property must be made with the consent of both spouses. **Is the sale valid? Explain.**

6. Steph purchased a valuable bracelet from KM through Facetok Marketplace. Steph, who had neither a credit card nor a mobile wallet, asked KM if she could send the payment by courier, to which the latter agreed. Steph placed her payment in an envelope and sealed it. She booked a rider from Hatid Padala, Inc., a reputable logistics company, to deliver the sealed envelope with money to KM. While the rider was on his way to deliver the envelope to KM, he met an accident. Consequently, the envelope containing the money was lost. Steph demanded KM to deliver the bracelet she had paid for, or to reimburse the money lost by the rider. **Are the demands of Steph justified? Explain.**

7. On his graduation day from senior high, Joshua, who was 16 years old, received a brand-new car as a gift from his parents. After a month, Joshua sold the

car to Matthew, his best friend and classmate who was also 16 years old, with a 30% discount because the car had already been used for a month.

When Joshua's father found out about the sale, he sued Matthew to recover the car, claiming that the sale is void because both the buyer and seller are minors and have no capacity to contract without their parents' consent. By way of compromise, Joshua's father offered to return the money paid by Matthew under the condition that Matthew should return the car in good condition. **Is the sale valid? Explain.**

8. Julio is the owner of a two-hectare farmland along the Agos River that flows into the Pacific Ocean. Over time, the flow of water from Agos River was diverted and the river branched into two. An island with an area of more or less one hectare formed between the two river branches.

Francis, who resided five houses downriver from Julio, had occupied and fenced the island, built a house of light materials, and for 12 years, planted rice and vegetables on the island. Julio, on the other hand, claims that the island belongs to him because the island is part of his property which was decreased by the flow of the river and accumulated to form the island. As proof, Julio presented a survey of his property showing that only 2/3 of the original area of his property, as described in his certificate of title, remains above water. **Who owns the island? Explain.**

9. John and Joyce are college sweethearts. They have a three-year old non-marital son, Jacob. When they agreed to marry, John borrowed money from his father and purchased a one-bedroom condominium unit in Taguig, which John registered in his name in preparation for his marriage to Joyce. In a Facetok post by John of his engagement to Joyce, he wrote this message:

> "My love, I promise to provide everything that you and Jacob will ever need and want. The condominium in Taguig is our family home. You and Jacob can live there for as long as you want."

However, John and Joyce drifted apart. They cancelled their engagement and each found a new partner. After they broke up, John demanded that Joyce vacate the condominium unit. Joyce refused. **Does Joyce have a right to occupy the condominium unit over John's objection? Explain.**

10. Connie is the registered owner of a 20-hectare parcel of land in Batangas City. In 2020, Connie passed away. In 2022, Jem forged her aunt Connie's signature and sold the Batangas property to Benny. In turn, Benny registered the sale and obtained a certificate of title in his name.

The heirs of Connie found out about the forged sale. They filed an action to annul the sale and nullify Benny's certificate of title. They also caused the annotation of a notice of *lis pendens* on Benny's title. While the case was pending, Benny sold the Batangas property to ABC Realty Inc., a property developer, who obtained title in its name and intervened in the pending suit as a transferee *pendente lite*. After trial, the court rendered judgment in favor of Connie's heirs, voided the sale to Benny, and nullified his title and all titles derived therefrom.

After the judgment in favor of Connie's heirs became final, ABC Realty Inc. filed a claim against the Register of Deeds of Batangas and the National Treasurer for compensation on the ground of the fraud committed by Jem and Benny. **Is ABC Realty Inc. entitled to its claim of compensation for the loss of the Batangas property due to the fraud committed by the vendors? Explain.**

11. On January 5, 2025, brothers Tony and Jojo entered into a contract of sale with Ricky, where they bound themselves to deliver a particular Black 2025 Mercedes Benz E300 sedan to Ricky for PHP 8 million on March 15, 2025. On March 17, 2025, Ricky demanded from Tony the delivery of the car, but Tony refused to comply. On March 31, 2025, while Jojo was on his way to deliver the car to Ricky, the same was struck by lightning and was totally destroyed. Due to the total loss of the car, Ricky filed an action for damages against Tony and Jojo. **Will the action prosper? Explain.**

12. Inna is the owner of a particular vacant commercial lot in San Fernando, La Union. On January 1, 2026, Inna and Lynel entered into an oral five-year contract of lease involving the said property for PHP 50,000.00 per month. The parties stipulated, among others, that Lynel "SHALL USE THE PROPERTY AS A PARKING LOT AND SHALL NOT INTRODUCE ANY IMPROVEMENT THEREON WITHIN A PERIOD OF TWO YEARS FROM JANUARY 1, 2026."

On July 1, 2026, Lynel erected a two-story commercial building on the property. Upon discovery thereof, Inna demanded that Lynel demolish the building and vacate the premises. The demand fell on deaf ears. On August 5, 2026, Inna filed an action for damages against Lynel for breach of contract. Lynel argued that her contract with Inna is not in writing, and thus, unenforceable by action. **Is Lynel correct? Explain.**

13. On January 1, 2025, Marie purchased from Toyota Alabang, Inc. (Toyota) a 2025 Toyota Camry for PHP 2.4 million, payable in 24 equal monthly installments starting from January 31, 2025. To secure the payment of the price, she executed a chattel mortgage over the vehicle in favor of Toyota. However, starting June 30, 2025, Marie began defaulting in the payment of the remaining installments due. Thus, on February 1, 2026, Toyota filed an action against Marie for the payment of the remaining balance plus damages.

After due hearing, Toyota was able to obtain a final judgment directing Marie to pay the remaining balance. Acting upon the motion for execution of Toyota, the court ordered the immediate sale of the mortgaged vehicle. The sheriff then sold the vehicle for PHP 700,000.00 only, still leaving a deficiency. Upon motion, the court ordered Marie to pay Toyota the remaining balance plus interest at the rate of 10% per annum until fully paid. Marie filed a motion for reconsideration contending that the trial court erred in not finding that the immediate sale of the vehicle at public auction was tantamount to the foreclosure of the chattel mortgage on said vehicle and there can no longer be any recovery of the deficiency. **Is Marie correct? Explain.**

14. On January 1, 2026, Martha and Lazarus entered into a contract of sale, where Martha bound herself to deliver and transfer the ownership of a particular parcel of land to Lazarus on or before March 31, 2026, for PHP 4 million, payable on or before December 31, 2026. The following day, Martha and Lazarus executed a document denominated as a Deed of Absolute Sale and had it notarized by Atty. Lipas, whose notarial commission expired on December 31, 2024.

On February 2, 2026, Martha died leaving Moses as her sole heir. On April 2, 2026, Lazarus demanded from Moses the delivery of the parcel of land. Moses refused to comply, arguing that the document purporting to contain the sale between Lazarus and his mother is null and void, as the same was notarized by a person not authorized to administer oaths. Likewise, Moses averred that he is not in any way bound by the contract as he is a complete stranger thereto. Finally, Moses claimed that the purchase price was not yet paid when the demand was made. **Is Moses correct? Explain.**

15. Troy owns a parcel of commercial land situated in R. Magsaysay Avenue, Davao City. On January 1, 2015, Troy and Bolton entered into a 10-year contract of lease for PHP 100,000.00 per month. They agreed that Bolton can construct a two-storey building on the land for the operation of the latter's grocery store. Immediately upon assuming possession of the property, Bolton constructed a two-storey building thereon that cost PHP 10 million.

Upon the expiration of the lease, Troy told Bolton that he was no longer extending the same and demanded that Bolton vacate the premises without demolishing the structure. Bolton did not register any objection but demanded PHP 10 million as reimbursement for the building. Bolton claimed that as a builder in good faith, he is entitled to full reimbursement of the useful improvements with a right of retention until fully paid. Troy refused to pay. **Should Troy fully reimburse Bolton? Explain.**

16. Manny was drinking from a bottle of soda that had been served to him at a restaurant when he suddenly felt something solid in his mouth. He immediately spat it out and discovered what appeared to be a fragment of bone. He reported the incident to the office of the soda manufacturer and requested a laboratory analysis

of the fragment in the presence of its representative. When asked by the manufacturer, Manny admitted that he did not suffer any medical problems after consuming the drink. The laboratory analysis confirmed that the fragment was a piece of human bone. It was further revealed that, several months earlier, an employee of the manufacturer had suffered an injury at the plant, resulting in the loss of half a finger while working in the bottling division. **Is Manny entitled to recover damages from the manufacturer? Explain.**

17. Mark was inside his condominium unit when his cousin Joma barged in and confronted him about a business deal that had gone sour. The confrontation became heated and violent. Joma grabbed a heavy vase and threw it at Mark. However, Mark was able to avoid the vase, causing it to pass through the window and fall onto the street below, where it struck a pedestrian. The pedestrian suffered injuries. **Is Mark liable for the pedestrian's injuries? Explain.**

18. Beth executed a will where she gave a condominium unit to her ward Eman, subject to the condition that Eman shall be entitled to the inheritance only upon the death of Beth's father, and that in the meantime, her father shall have a lifetime usufruct over the condominium unit. Beth died two months after the execution of her will. She was survived by her father, her sister Linda, and Eman. Two years after the death of Beth, Eman died and is survived by his daughter Claire. Three years after the death of Eman, the father of Beth died, survived by Linda. **Who shall inherit the condominium unit? Explain.**

19. On June 6, 2011, the ship that Cesar boarded going to Guam sank in the Pacific Ocean due to a strong storm at sea. The body of several passengers, including Cesar's, could not be found. After missing for more than four years, a petition for the settlement of the intestate estate of Cesar was filed in court. The following relatives survived Cesar and claimed to be his heirs: (a) Billy, the older brother of Cesar; and (b) Roxy, the daughter of the deceased sister of Cesar, who was two years old at the time of the filing of the petition. **Who is/are entitled to inherit? Explain.**

20. George instituted in his will, his two legitimate daughters, Ann and Juliene, and his friend Gary, as heirs to his entire estate. However, Juliene repudiated her inheritance. The net estate of George when he died was PHP 360 million. **How much should Ann, Juliene, and Gary inherit, if any? Explain.**

***Nothing follows***